

UPSC INDIAN POLITY

President & Vice-President Session-Level Deep-Learning Notes

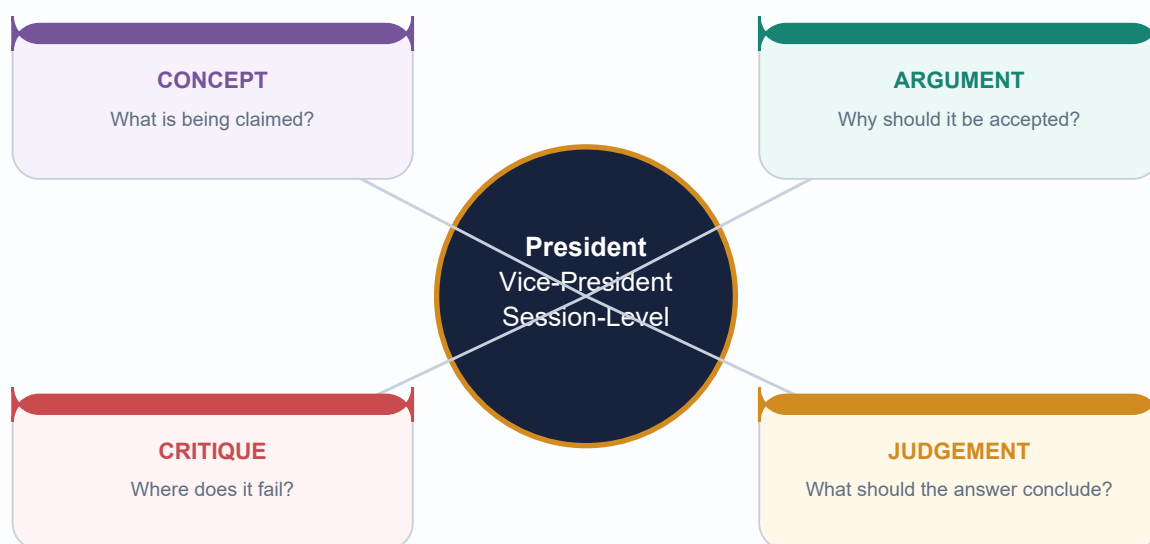
Indian Polity • Articles 52-73 • GS Paper II • Prelims + Mains

Integrated Basic + Advanced Course

13 deep-learning modules | Election, Powers, Veto, Ordinance, Pardon, Vice-President

Visual maps, safeguard timelines, comparisons, UPSC traps and Mains frameworks

Sources: basic/President-and-Vice-President.md + advanced/15_President-and-Vice-President.md



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

1. Nominal Executive Architecture: President and Vice-President at a Glance

GS-II Indian Polity

INTRO & ORIGIN

The President (Art 52-62, 72) is India's nominal executive; the Vice-President (Art 63-71) is primarily the ex-officio Chairman of the Rajya Sabha.

Ambedkar described the President as "head of the State, but not of the Executive" — a symbol of the nation, not the seat of real power.

WHERE REAL POWER SITS

Union Executive (Art 52-78)

President Nominal executive; acts on binding Cabinet advice (Art 74)	Vice-President Ex-officio Rajya Sabha Chairman; acts as President on a vacancy
PM + Council of Ministers Real executive; see the companion PM & CoM chapter	Constitutional design 42nd Amdt made advice binding; 44th Amdt allows one reconsideration

KEY DATA

Item	President	Vice-President
Articles	52-62, 72	63-71
Electoral college	Elected MPs + elected MLAs (+ Delhi/Puducherry)	MPs only (elected + nominated)
Minimum age	35	35
Qualified for	Lok Sabha	Rajya Sabha
Removal	Impeachment (Art 61)	RS effective-majority resolution + LS agreement
Term	5 years, unlimited re-elections	5 years

STATIC THEORY

- The 42nd Amendment (1976) made the Council of Ministers' advice binding on the President.
- The 44th Amendment (1978) lets the President return advice once for reconsideration; the reconsidered advice is binding.
- President is elected by PR-STV, secret ballot; an MLA's vote value uses the 1971 census (84th Amendment).

MEMORY HOOK

President = nominal head, elected by MPs+MLAs | Vice-President = RS Chairman, elected by MPs only.

MUST-KNOW FACTS

1. President's oath is administered by the CJI; the Vice-President's oath is administered by the President.
2. Only Dr. Rajendra Prasad has served two full presidential terms.
3. Ambedkar: the President is "head of the State but not of the Executive."

MAINS ANGLE

"The President is a rubber stamp." Critically examine the situational discretion of the office as a starting frame for this chapter.

STUDY LINK

Polity → Union Executive → President and Vice-President Overview

HIGH

2. Presidential Election (Art 54-55): The Electoral College and PR-STV

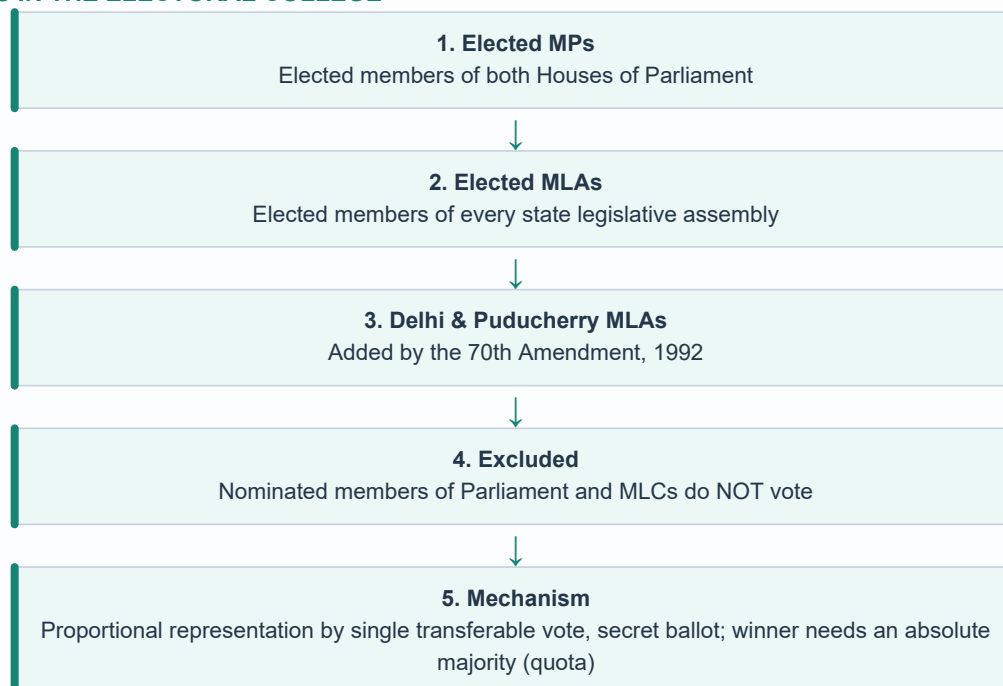
GS-II Indian Polity

INTRO & ORIGIN

The President is elected indirectly by an electoral college, not directly by the citizens — a deliberate design choice for a nominal, symbolic head.

KEY DATA

Feature	Rule
Vote value base year	1971 census population, until figures of the first census after 2026 are published (84th Amdt, 2001)
Election disputes	Decided by the Supreme Court (final)
Why indirect	President is a nominal executive; direct election would be costly for a symbolic head

WHO SITS IN THE ELECTORAL COLLEGE

STATIC THEORY

- MLCs (members of Legislative Councils) never vote in the presidential election — only elected MLAs of assemblies do.
- Delhi and Puducherry's elected assembly members were added to the electoral college only by the 70th Amendment, 1992.

MEMORY HOOK

Electoral college = elected MPs + elected MLAs (+ Delhi/Puducherry) — nominated members and MLCs never vote.

MUST-KNOW FACTS

1. The 70th Amendment, 1992 added Delhi and Puducherry's elected assembly members to the presidential electoral college.
2. MLA vote value is based on the 1971 census until the first census after 2026 is published (84th Amendment, 2001).
3. Presidential election disputes are decided finally by the Supreme Court.

UPSC TRAPS

WRONG: Nominated members of Parliament vote in the presidential election.

CORRECT: Only elected members of Parliament vote in the presidential election; nominated members do not (though they can vote in impeachment).

MAINS ANGLE

Why does the Constitution choose an indirect PR-STV election for a nominal head of state?

STUDY LINK

Polity → President → Election Mechanics (Art 54-55)

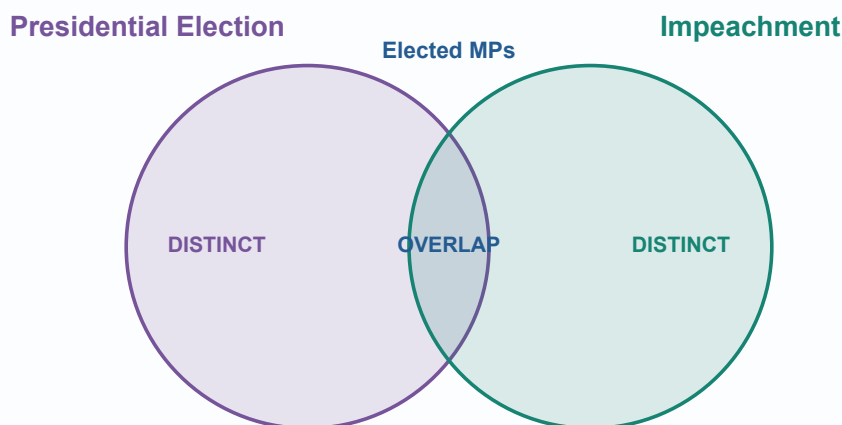
HIGH

4. Impeachment (Art 61): The Nominated-Members Paradox

GS-II Indian
Polity

INTRO & ORIGIN

Impeachment is the President's only removal mechanism, and its single ground is deliberately left undefined.

WHO VOTES: ELECTION VS IMPEACHMENT**Presidential Election**

- Elected MLAs of every state (+ Delhi/Puducherry)
- Nominated MPs do NOT vote

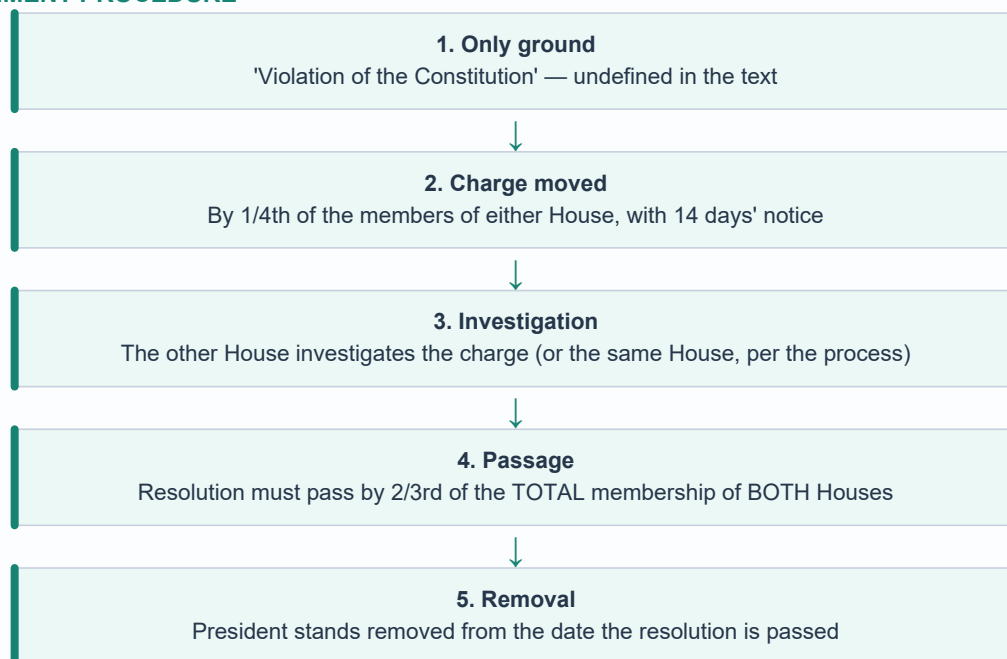
Elected MPs

- Elected Members of Parliament participate in both processes

Impeachment

- Nominated MPs CAN participate in impeachment
- State MLAs CANNOT participate in impeachment

The electorate for election and for impeachment is not the same body — MLAs vote to elect but not to impeach; nominated MPs impeach but do not elect.

IMPEACHMENT PROCEDURE**MEMORY HOOK**

Election electorate ≠ Impeachment electorate — MLAs elect but don't impeach; nominated MPs impeach but don't elect.

MUST-KNOW FACTS

1. No President has been impeached so far.
2. The impeachment charge needs 1/4th of a House's members and 14 days' notice; passage needs 2/3rd of the total membership of both Houses.
3. Nominated MPs can vote in impeachment despite having no vote in the presidential election.

UPSC TRAPS

WRONG: The same electors who elect the President also vote to impeach the President.

CORRECT: State MLAs vote in the election but cannot vote in impeachment; nominated MPs cannot vote in the election but CAN vote in impeachment.

MAINS ANGLE

Examine why the Constitution deliberately leaves 'violation of the Constitution' undefined as the sole impeachment ground.

STUDY LINK

Polity → President → Impeachment (Art 61)

HIGH**5. Presidential Powers: The Seven Heads**

GS-II Indian Polity

INTRO & ORIGIN

The President's functions span seven distinct domains — the standard mnemonic groups them for rapid Prelims recall.

E-L-F-J-D-M-E: THE SEVEN HEADS**Presidential Powers**

Executive + Legislative Appoints PM/ministers/AG/CAG/UPSC/Governors; summons/prorogues Parliament; nominates 12 RS members	Financial + Judicial Money bills need prior recommendation; appoints CJI/judges; seeks SC advice (Art 143, not binding); pardon (Art 72)
Diplomatic + Military Treaties in his name (subject to Parliament); Supreme Commander of the defence forces	Emergency Articles 352 (National), 356/365 (President's Rule), 360 (Financial)

KEY DATA

Type	Highlights
Executive	Union executive action in his name; appoints PM, ministers, AG, CAG, CEC/ECs, UPSC, Governors, Finance Commission
Legislative	Summon/prorogue Parliament, dissolve LS, joint sitting; nominates 12 RS members; assent to bills; ordinances
Financial	Money bills need prior recommendation; lays the Union Budget; Contingency Fund advances; constitutes the Finance Commission
Judicial	Appoints CJI/SC/HC judges; seeks SC advice (Art 143, not binding); pardoning power (Art 72)
Diplomatic / Military	Treaties in his name; Supreme Commander of the defence forces, appoints service chiefs
Emergency	Articles 352, 356/365, 360

MEMORY HOOK

E-L-F-J-D-M-E = Executive · Legislative · Financial · Judicial · Diplomatic · Military · Emergency.

MUST-KNOW FACTS

1. The President nominates 12 Rajya Sabha members (art, literature, science, social service).
2. The Anglo-Indian nomination to the Lok Sabha (up to 2 members) lapsed via the 104th Amendment, 2020.

UPSC TRAPS

WRONG: The President still nominates Anglo-Indian members to the Lok Sabha.

CORRECT: That nomination power lapsed with the 104th Amendment, 2020.

MAINS ANGLE

Use the seven-head framework to structure any Mains question on presidential powers comprehensively.

STUDY LINK

Polity → President → Powers and Functions

HIGH

6. Veto Power (Art 111): Absolute, Suspensive, Pocket

GS-II Indian
Polity

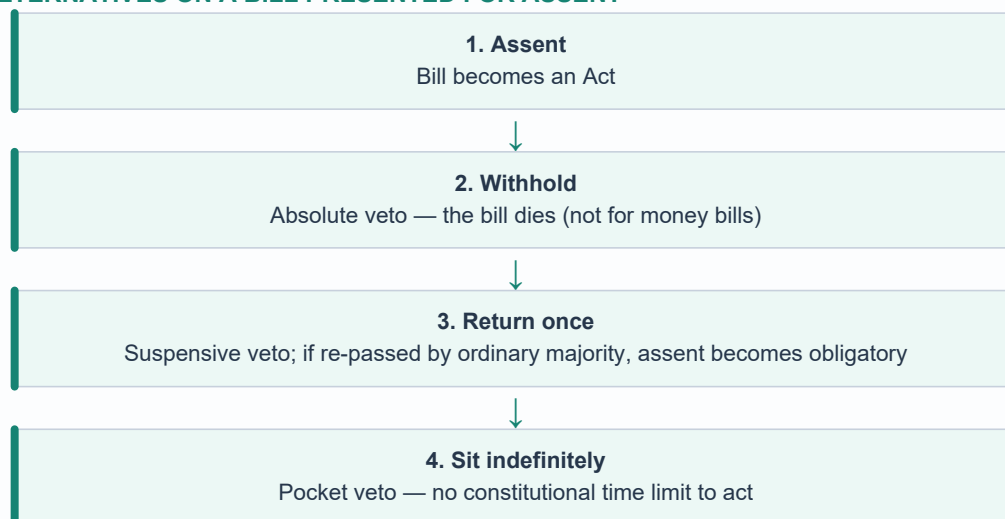
INTRO & ORIGIN

India's President has three veto types over ordinary bills — but, unlike the US President, no qualified veto.

KEY DATA

Veto	Meaning	Example
Absolute	Withholds assent; the bill dies	Rajendra Prasad — PEPSU Appropriation Bill (1954); Venkataraman — MP Salary Bill (1991)
Suspensive	Returns the bill; overridden by an ORDINARY majority re-passage	— (India's ordinary-majority override is markedly weaker than the US 2/3rd override)
Pocket	Sits on the bill indefinitely; no time limit to act	Zail Singh — Indian Post Office (Amendment) Bill, 1986

THREE ALTERNATIVES ON A BILL PRESENTED FOR ASSENT



STATIC THEORY

- A constitutional amendment bill CANNOT be vetoed — the 24th Amendment (1971) made assent obligatory.
- Over state bills reserved by the Governor (Art 201), the President may assent, withhold, or direct return — but is NOT bound to assent even if the state legislature re-passes it, and can also pocket veto.

MEMORY HOOK

India's President = Absolute + Suspensive + Pocket veto; NO qualified veto (that belongs to the US President).

MUST-KNOW FACTS

1. Zail Singh's pocket veto on the Indian Post Office (Amendment) Bill, 1986 is the textbook example.
2. The 24th Amendment, 1971 made presidential assent to a constitutional amendment bill obligatory — no veto is possible there.

UPSC TRAPS

WRONG: The Indian President has a qualified veto, just like the US President.

CORRECT: The Indian President has absolute, suspensive and pocket vetoes only; the qualified veto is a US presidential power.

WRONG: The President can veto a constitutional amendment bill.

CORRECT: Assent to a constitutional amendment bill is obligatory since the 24th Amendment, 1971.

MAINS ANGLE

Should India's suspensive veto require a higher (special) majority for re-passage, as in the US model?

STUDY LINK

Polity → President → Veto Power (Art 111)

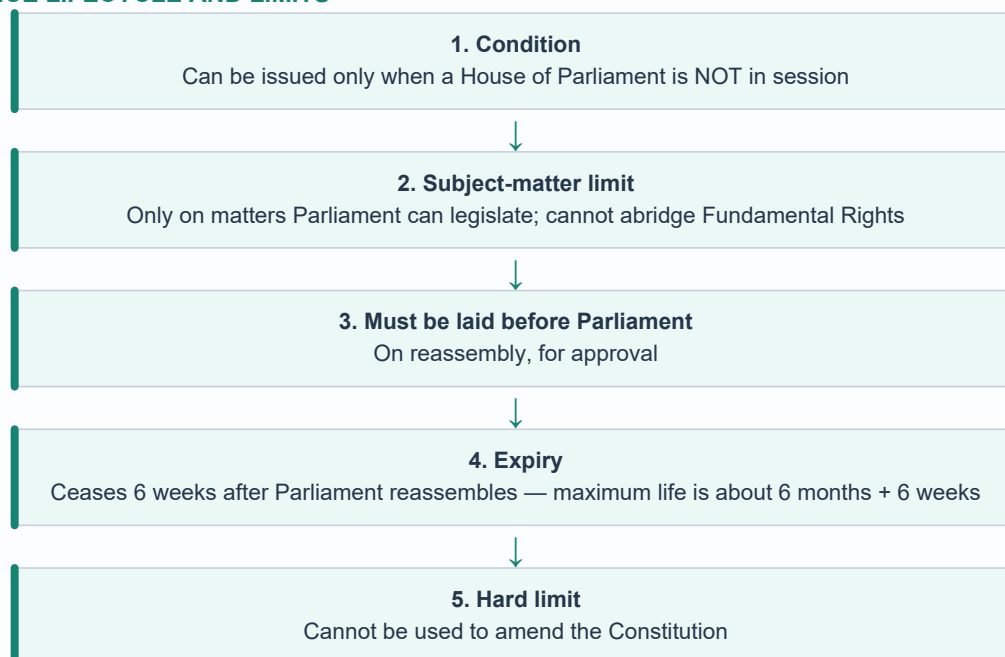
HIGH

7. Ordinance-Making Power (Art 123): Limits and Case Law

GS-II Indian Polity

INTRO & ORIGIN

Ordinances are the President's most important legislative power — temporary laws with the force of an Act, bounded by strict constitutional limits.

ORDINANCE LIFECYCLE AND LIMITS**STATIC THEORY**

- Cooper case (1970): the President's satisfaction in issuing an ordinance is justiciable on grounds of mala fide.
- D.C. Wadhwa (1987): re-promulgation of ordinances without placing them before the legislature is a 'fraud on the Constitution.'

MEMORY HOOK

Cooper (1970) = mala fide review | D.C. Wadhwa (1987) = re-promulgation is a 'fraud on the Constitution.'

MUST-KNOW FACTS

1. An ordinance's maximum possible life is roughly 6 months plus 6 weeks (session gap plus post-reassembly window).
2. D.C. Wadhwa (1987) is the landmark case condemning repeated re-promulgation of ordinances.

UPSC TRAPS

WRONG: The President's ordinance-making power is entirely beyond judicial review.

CORRECT: Cooper (1970) allows review on mala fide grounds; D.C. Wadhwa (1987) condemned repeated re-promulgation as a 'fraud on the Constitution.'

WRONG: An ordinance can be used to amend the Constitution if Parliament is not in session.

CORRECT: An ordinance can never be used to amend the Constitution.

MAINS ANGLE

Ordinance-making and the D.C. Wadhwa doctrine — executive overreach versus legislative necessity.

STUDY LINK

Polity → President → Ordinance-Making Power (Art 123)

HIGH

8. Pardoning Power (Art 72) vs Governor (Art 161): The Scope Gap

GS-II Indian
Polity

INTRO & ORIGIN

The pardoning power looks similar for President and Governor, but two specific categories mark a firm constitutional line between them.

KEY DATA

Form of clemency	President can grant	Governor can grant
Pardon / reprieve / respite / remission / commutation	Yes	Yes
Death sentence	Yes	No (only suspend/remit/commute, not pardon)
Court-martial sentence	Yes (exclusive)	No

STATIC THEORY

- The pardoning power is exercised on the Cabinet's advice and is subject to judicial review only if it is exercised arbitrarily or mala fide.
- A death sentence and a court-martial sentence are the two categories where only the President — never the Governor — can act.

MEMORY HOOK

Death sentence PARDON + court-martial PARDON = President only; Governor never does either.

MUST-KNOW FACTS

1. Only the President can pardon a death sentence or a court-martial sentence; the Governor cannot do either.
2. The Governor retains a concurrent power to suspend, remit, or commute (but not pardon) a death sentence.

UPSC TRAPS

WRONG: A state Governor can pardon a death sentence under Article 161.

CORRECT: Only the President can pardon a death sentence (Art 72); the Governor can only suspend, remit or commute it.

MAINS ANGLE

2025 GS-II Mains PYQ (10 marks): Compare and contrast the President's power to pardon in India and the USA. Route: Art 72 with binding ministerial advice vs the US President's personal Article II power → Indian scope limited to court-martial/death-sentence cases vs the US federal-offence/impeachment limits → review only for mala fide/arbitrariness → a 'pre-emptive pardon' covers completed past conduct before charge or conviction, not future offences.

STUDY LINK

Polity → President → Pardoning Power (Art 72) — Verified PYQ Route

HIGH

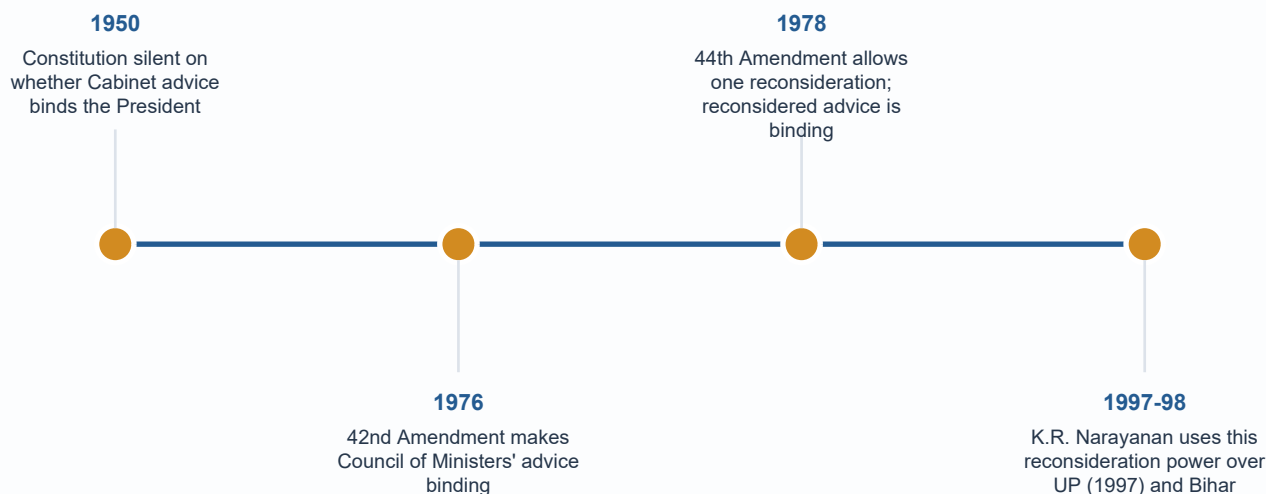
9. Constitutional Position: 42nd/44th Amendments and Situational Discretion

GS-II Indian
Polity

INTRO & ORIGIN

The President has NO constitutional discretion, but does have situational discretion in specific factual circumstances not spelt out in the text.

BINDING ADVICE: THE 42ND/44TH AMENDMENT ARC



STATIC THEORY

- Situational discretion examples: appointing a PM in a hung Lok Sabha; dismissing a Council of Ministers that cannot prove confidence; dissolving the Lok Sabha when the Council of Ministers has lost its majority.
- This is distinct from 'constitutional discretion' — the Constitution grants the President no explicit discretionary clause comparable to a Governor's Article 163 proviso.

MUST-KNOW FACTS

1. The 42nd Amendment (1976) made Cabinet advice binding on the President.
2. The 44th Amendment (1978) allows the President to return advice once for reconsideration; the reconsidered advice is binding.
3. K.R. Narayanan used the reconsideration power over Uttar Pradesh (1997) and Bihar (1998) President's Rule recommendations.

MAINS ANGLE

Situational discretion vs binding advice — has the 44th Amendment left any genuine autonomy to the President?

STUDY LINK

Polity → President → Constitutional Position (Art 53, 74, 75)

HIGH

10. The Vice-President: Election, Functions and the 'Acting President' Limit

GS-II Indian
Polity

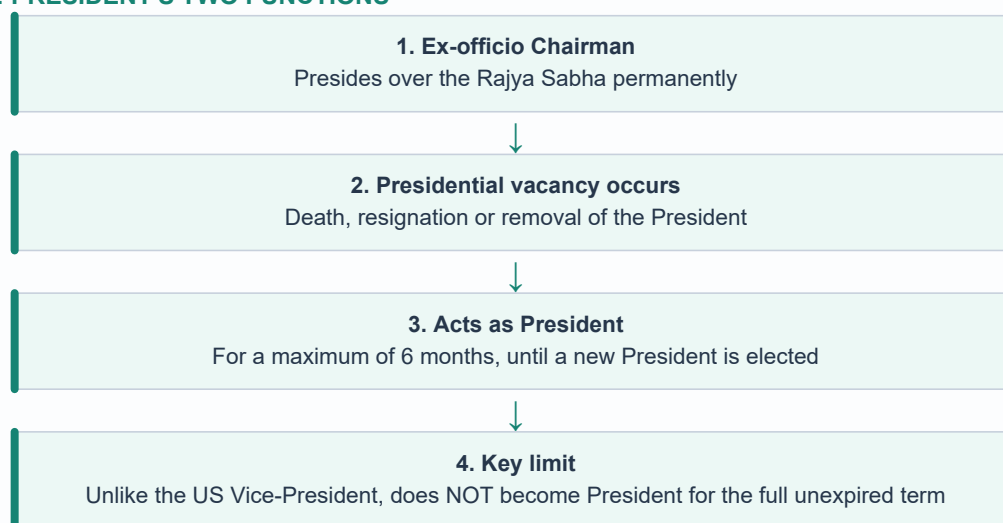
INTRO & ORIGIN

The Vice-President's electoral college and functional role are both narrower and different in character from the President's.

KEY DATA

Feature	Rule
Electoral college	Members of BOTH Houses of Parliament ONLY — includes nominated members, excludes state MLAs
Qualifications	Citizen · 35 years · qualified for Rajya Sabha · no office of profit
Nomination	20 proposers + 20 seconders; deposit ₹15,000
Oath	Administered by the President
Term	5 years; resigns to the President
Removal	Resolution by effective majority of Rajya Sabha + simple-majority agreement of Lok Sabha; can only be initiated in Rajya Sabha; no ground required

THE VICE-PRESIDENT'S TWO FUNCTIONS



STATIC THEORY

- Ambedkar's rationale for excluding state MLAs from the VP electoral college: the VP's primary function is presiding over the Rajya Sabha, a body with no MLA representation.
- Some scholars have called the Indian Vice-President 'His Superfluous Highness' given the largely ceremonial nature of the office outside a vacancy.

MEMORY HOOK

VP acts as President for MAX 6 months only — never for the full unexpired term (unlike the US VP).

MUST-KNOW FACTS

1. The Vice-President's removal resolution can be initiated only in the Rajya Sabha, and needs no stated ground.
2. The Vice-President acts as President for a maximum of 6 months on a vacancy — a new election must follow.

UPSC TRAPS

WRONG: The Vice-President becomes President for the remainder of the unexpired term, as in the USA.

CORRECT: The Indian VP only ACTS as President for a maximum of 6 months, after which a fresh presidential election is held.

MAINS ANGLE

Why does Indian constitutional design deliberately cap the Vice-President's acting tenure at 6 months?

STUDY LINK

Polity → Vice-President → Election, Removal and Functions

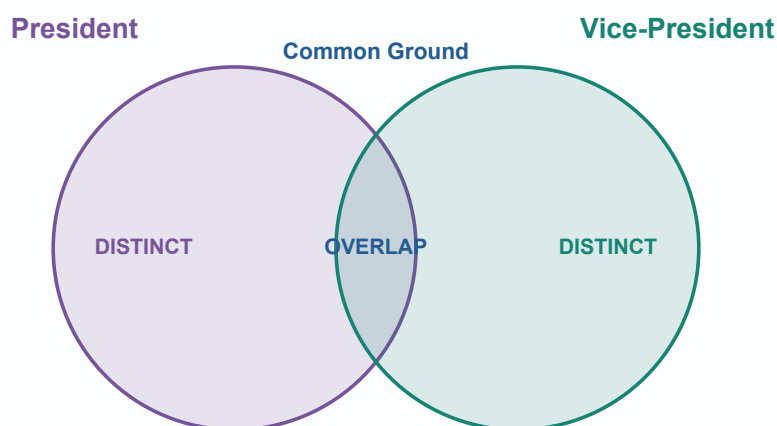
HIGH

11. President vs Vice-President: The Comparative Electorate Matrix

GS-II Indian Polity

INTRO & ORIGIN

The two electoral colleges look similar but differ on exactly the two categories UPSC most often tests.

PRESIDENT'S ELECTORATE VS VICE-PRESIDENT'S ELECTORATE**President**

- Elected MLAs of every state assembly
- Elected members of Delhi & Puducherry assemblies (70th Amdt)

Common Ground

- Elected Members of Parliament vote in both
- PR-STV, secret ballot in both

Vice-President

- Nominated MPs of Parliament (unlike the presidential election)
- No state MLAs at all

MLAs vote for President but not Vice-President; nominated MPs vote for Vice-President but not President.

KEY DATA

Feature	President	Vice-President
Nominated MPs vote?	No	Yes
State MLAs vote?	Yes (elected only)	No
Removal ground	'Violation of the Constitution' (Art 61)	No ground required
Removal House	Both Houses (2/3rd total membership each)	Initiated only in Rajya Sabha

MEMORY HOOK

President's electors = MPs(elected) + MLAs(elected) | VP's electors = MPs(elected + nominated) only.

MUST-KNOW FACTS

1. State MLAs vote for the President but never for the Vice-President.
2. Nominated MPs vote for the Vice-President but never for the President (though they can join presidential impeachment).

UPSC TRAPS

WRONG: State MLAs vote in the Vice-Presidential election too.

CORRECT: Only MPs (elected and nominated) vote for the Vice-President; MLAs vote only in the presidential election.

MAINS ANGLE

Contrast the design logic behind the President's and Vice-President's differently composed electoral colleges.

STUDY LINK

Polity → President and Vice-President → Comparative Electorate

HIGH

12. Current Constitutional Debate: Articles 200/201 and Assent Timelines

GS-II Indian Polity

NEWS TRIGGER

The five-judge Article 143 opinion of 20 November 2025 held that courts cannot create rigid timelines or automatic 'deemed assent' for bills reserved for the President/Governor, but prolonged, unexplained and indefinite gubernatorial inaction remains open to limited judicial review and mandamus.

STATIC THEORY

- This 2025 opinion arose from the recurring dispute over how long a Governor (Art 200) or the President (Art 201) may sit on a state bill before acting.
- The opinion balances two competing concerns: preventing indefinite, unaccountable inaction, while not judicially rewriting the Constitution to impose a rigid deadline the text does not contain.
- This directly connects to the D.C. Wadhwa ordinance doctrine and the pocket-veto discussion in this same chapter — both involve unexplained executive delay on legislative action.

MUST-KNOW FACTS

1. The 20 November 2025 Article 143 opinion held there is no automatic 'deemed assent' and no court-imposed rigid timeline for Governor/President action on bills.
2. Despite that, prolonged and unexplained inaction remains reviewable through limited judicial review and mandamus.

MAINS ANGLE

Should a constitutional time-limit be prescribed for Governor/President assent to bills, given the November 2025 Article 143 opinion?

STUDY LINK

Polity → President and Governor → Articles 200/201 Assent Debate (2025)

MEDIUM UPSC RELEVANCE**MEDIUM**

3. Qualifications, Nomination and Oath

GS-II Indian Polity

KEY DATA

Requirement	Rule
Citizenship	Must be a citizen of India
Age	Minimum 35 years
Qualification	Qualified for election to the Lok Sabha
Office of profit	Must not hold any office of profit
Nomination	50 proposers + 50 seconders; deposit ₹15,000 (forfeited if fewer than 1/6th of votes)
Oath	Administered by the CJI (or the senior-most Supreme Court judge)
Legal immunity	Immune from criminal proceedings during term; civil proceedings only after 2 months' notice

STATIC THEORY

- The deposit forfeiture rule (1/6th threshold) is designed to discourage frivolous candidatures.
- Civil proceedings against a sitting President require 2 months' advance notice — a distinct procedural immunity from criminal proceedings, which are barred entirely during the term.

MUST-KNOW FACTS

1. A presidential nomination needs 50 proposers and 50 seconders, with a ₹15,000 deposit.
2. The President's oath is administered by the Chief Justice of India (or the senior-most Supreme Court judge in the CJI's absence).

MAINS ANGLE

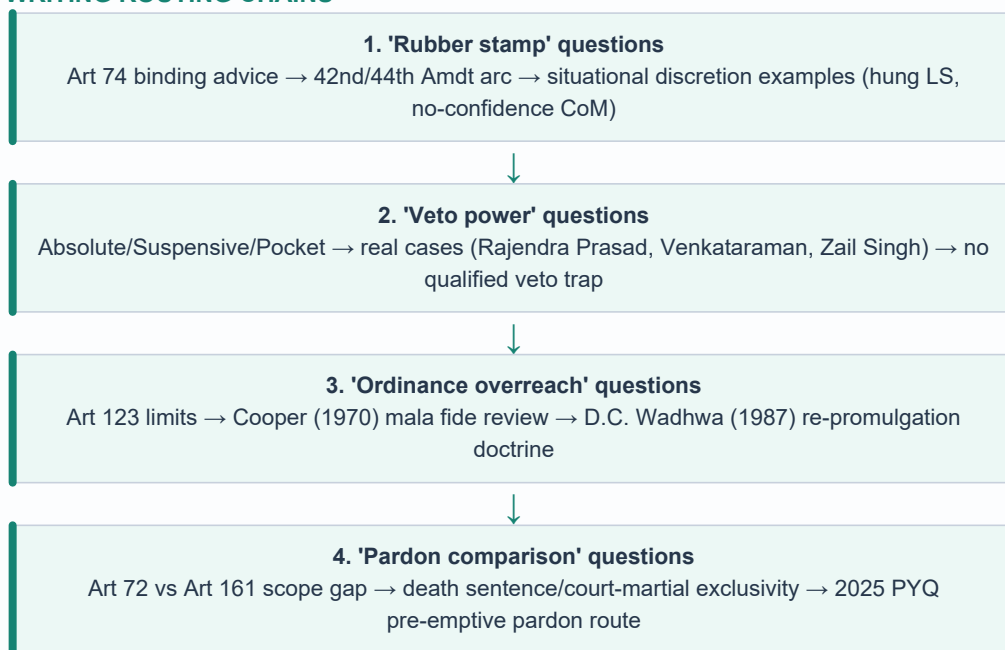
Compare the nomination thresholds for President and Vice-President and their rationale.

STUDY LINK

Polity → President → Qualifications and Oath

MEDIUM**13. UPSC Analysis and Answer-Writing Framework**GS-II Indian
Polity**INTRO & ORIGIN**

A closing framework converting this chapter's facts into Prelims recall and Mains answer structure.

ANSWER-WRITING ROUTING CHAINS**STATIC THEORY**

- Prelims recall order for President/VP: Article → Elector composition → Term/removal → distinguishing power or limit.
- Every 'President vs Vice-President' question resolves on exactly two facts: who is in the electoral college, and whether removal needs a defined ground.

MEMORY HOOK

Article → Electors → Term/Removal → Distinguishing Power — the four-step recall chain for President/VP questions.

MUST-KNOW FACTS

1. The 2025 GS-II PYQ on pardons is the highest-confidence verified Mains anchor in this chapter.
2. D.C. Wadhwa (1987) and Cooper (1970) are the two indispensable ordinance-power case citations.
3. The nominated-MP / MLA electorate split (election vs impeachment, President vs Vice-President) is the single most recurring UPSC trap zone in this chapter.

MAINS ANGLE

Consolidated Mains angles: (1) 'The President is a rubber stamp' — critically examine situational discretion. (2) Ordinance-making and the D.C. Wadhwa doctrine — executive overreach vs legislative necessity. (3) Should a constitutional time-limit be prescribed for Governor/President assent to bills?

STUDY LINK

Polity → President and Vice-President → UPSC Answer-Writing Framework